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NATURE OF PROCEEDINGS: Hearing on Motion to Set Aside

Default and Default Judgment

Defendants' Motion to Set Aside Default and Default Judgment is granted.

BACKGROUND

Plaintiff Guerrero-Salinas Family, LLC (Plaintiff) filed this action against Go Impact Solutions, Inc. (Go Impact) and Gildardo Ordonez (Ordonez) (collectively, Defendants), alleging that Defendants agreed to furnish labor and equipment to renovate three residential properties, performed the work deficiently, abandoned it, and held no contractor's license.

The causes of action are: (1) Breach of Contract; (2) Disgorgement of Funds; and (3) Violation of Business and Professions Code Section 17200.

Defaults were entered against both Defendants, and the Court entered a default judgment against them on January 22, 2026. Abstracts of Judgment were thereafter recorded in San Bernardino County and Riverside County.

Defendants filed a Motion to Set Aside Default and Default Judgment. Plaintiff filed an Opposition.

REQUEST FOR JUDICIAL NOTICE

Plaintiff requests judicial notice of five documents within the declaration of its counsel.

Exhibit A. Granted. Statement of Information filed with the Secretary of State on April 23, 2024. (Evid. Code, § 452, subd. (c).)

Exhibits B, C, and D. Granted. Recorded deeds of trust, an interspousal grant deed, and a grant deed, noticed as to their existence, their recording, and their legal effect, and not as to the truth of the matters recited in them. (Evid. Code, § 452, subd. (h).)

Exhibit E. Granted in part. The Court notices the filing of the Declaration of Sean Salinas on November 6, 2025, and not the truth of its contents. (Evid. Code, § 452, subd. (d).) The request is denied as to the bank check attached to it, which is neither an official act nor a court record.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (d) provides in relevant part that a court “may ... on motion of either party after notice to the other party, set aside any void judgment or order.” “A judgment is ‘void’ only when the court entering that judgment ‘lack[ed] jurisdiction in a fundamental sense’ due to the “‘entire absence of power to hear or determine the case’” resulting from the “‘absence of authority over the subject matter or the parties.’” (People v. The North River Ins. Co. (2020) 48 Cal.App.5th 226, 233.) “[A] default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void.” (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1444 (Dill).) The burden of proof is on the plaintiff to show that service was proper. (Id. at p. 1441.)

ANALYSIS

I. Service of Summons

Defendants argue that the substituted service at 23040 Wren Street in Grand Terrace conferred no personal jurisdiction. (Mot., pp. 9:23-10:2.) They contend that Ordonez had moved from the property more than a year before the service, and that the man the process server left the papers with was neither a member of his household nor a person in charge of any office of Go Impact. (Mot., p. 8:2-8; Reply, pp. 4:15-22.) Plaintiff argues that it served the address Defendants had registered with the Secretary of State and never changed, and that leaving the papers there with an apparent co-occupant was

service reasonably calculated to give notice. (Opp., pp. 9:13-26, 10:1-6.)

Section 415.20, subdivision (a), governs substituted service on a corporation. It permits “leaving a copy of the summons and complaint during usual office hours in his or her office or, if no physical address is known, at his or her usual mailing address, other than a United States Postal Service post office box, with the person who is apparently in charge thereof,” followed by a mailing. Section 415.20, subdivision (b), governs substituted service on an individual. Where the papers cannot with reasonable diligence be personally delivered, it permits “leaving a copy of the summons and complaint at the person’s dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of his or her office, place of business, or usual mailing address ..., at least 18 years of age, who shall be informed of the contents thereof,” followed by a mailing.

A. Credibility

Plaintiff argues that Ordonez’s declaration is incomplete and not credible, and that this alone requires denial. (Opp., pp. 5:1 - 7:6.)

Ordonez states that “the address is not my usual place of business” without giving the facts behind the conclusion. (Ordonez Decl., ¶ 4.) He also treats Exhibit B as establishing that he sold the property to Marco Matas, when that document names Esmeralda Ordonez as seller and names no buyer. (Ordonez Decl., ¶ 5; Ex. B.) From those two defects, and from Defendants’ continued use of the Wren Street address with lenders, with the Secretary of State, and, Plaintiff says, on a bank check, Plaintiff argues that nothing in the declaration can be believed. (Opp., pp. 5:16-21, 5:24 - 6:27.)

A conclusory sentence is a reason to decide the business question on other evidence, not a reason to disbelieve the declaration. Who sold the property and who bought it is immaterial. The exhibit establishes that an escrow on 23040 Wren Street closed on April 29, 2024, more than a year before the attempted service. Those documents show where Plaintiff obtained the address and how Defendants described themselves to lenders and to the Secretary of State. They establish nothing about who was at the property on July 20, 2025, and nothing about Marco Matas.

Plaintiff's own pleading and its process server's diligence declaration corroborate Ordonez's account of where he lived. The Court credits his testimony that he did not reside at 23040 Wren Street on July 20, 2025.

B. Gildardo Ordonez

The Amended Proof of Service for Ordonez states that on July 20, 2025, at 3:05 p.m., the process server left the summons and complaint with "MARCO MATAS, CO-OCCUPANT," and identifies the basis as "(home) a competent member of the household (at least 18 years of age) at the dwelling house or usual place of abode of the party." (Ordonez Decl., Ex. A.) It states no other basis. The server was a registered California process server, so the facts the return states are presumed. (Evid. Code, § 647.) Ordonez's declaration, the Complaint, and the process server's Declaration of Diligence would support a finding that those facts do not exist, so the Court decides the question on the evidence and without regard to the presumption. (Evid. Code, § 604.)

Ordonez testifies that he moved from 23040 Wren Street in approximately April 2024 and did not reside there when the papers were left. (Ordonez Decl., ¶¶ 4-5.) The escrow on the property closed on April 29, 2024. (Ordonez Decl., Ex. B.) Plaintiff's own Complaint alleges that "Defendant Gildardo Ordonez is an individual residing in the City of Redlands, San Bernardino, CA." (Compl., ¶ 3.) The Declaration of Diligence records that on the server's second attempt the occupant had moved into the address the preceding February, that the "SUBJECT IS UNKNOWN," and that there was a Redlands address for him. (Ordonez Decl., Ex. A.) The Court finds that the premises were not Ordonez's dwelling house or usual place of abode on July 20, 2025, and were therefore not the proper place to serve him. (See *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 545 (Ellard) ["[T]he South Taylor Court residence was not the proper place to serve the Conways because they moved"].)

Ordonez signed the Statement of Information six days before the escrow closed, and it gives Wren Street as the corporation's principal office, as its mailing address, as the address of its agent for service, and as the address of its Chief Executive Officer, Chief Financial Officer, and Secretary. (Flate Decl., ¶ 2, Ex. A.) No later filing amended it. (Ibid.) A deed of trust the corporation recorded in San Bernardino County recites that the corporation has "an address at 23040 Wren Street." (Flate Decl., ¶ 3, Ex. B.) Further deeds of trust, a grant deed by which the corporation took a half interest in another property, and an interspousal deed Ordonez executed after the attempted service

each give the same address, Plaintiff says. (Opp., pp. 5:24 - 6:19; Flate Decl., ¶¶ 3-5, Exs. B, C, D.) From that evidence Plaintiff argues that Wren Street was Ordonez's business address and his usual mailing address, so that service was proper on either ground. (Opp., p. 9:1-3.) A designation on a public filing and an address recited in a recorded instrument each record where a person says he may be reached. Neither establishes where he transacts business. Plaintiff offers no evidence that Ordonez conducted any business at the premises after April 2024, and the Declaration of Diligence gives 23040 Wren Street as his home address and states no business address for him. (Ordonez Decl., Ex. A.) The Court finds that 23040 Wren Street was not Ordonez's usual place of business on July 20, 2025.

The Statement of Information designates Wren Street as the mailing address of the corporation and as the address of its officers, and nothing in Plaintiff's evidence designates it as Ordonez's mailing address. (Flate Decl., ¶ 2, Ex. A.) Ordonez testifies that after the sale he had no access to mail or other deliveries sent there, and Plaintiff offers no evidence to the contrary. (Ordonez Decl., ¶ 5.) The Ellard defendants leased the private mailbox where they were served and gave it to the postal service as their forwarding address. That made it their usual mailing address. (Ellard, *supra*, 94 Cal.App.4th at pp. 546-547.) Ordonez did neither, and the copies mailed to Wren Street went to a house he had moved from more than a year earlier. (Ordonez Decl., ¶ 5; Ex. A.) The Court finds that the premises were not Ordonez's usual mailing address.

Subdivision (b) authorizes substituted service only where the summons and complaint "cannot with reasonable diligence be personally delivered to the person to be served." The number of attempts is not the measure. In Ellard the process server attempted service at the defendants' former residence, learned from the gate guard that they had moved, and obtained their forwarding address from the postal service. Returning to the former residence twice more would have been futile, and service at the forwarding address was good, so the Court of Appeal affirmed the denial of the defendants' motion to vacate. (Ellard, *supra*, 94 Cal.App.4th at pp. 545-546.)

Here, the Declaration of Diligence records eight attempts, every one of them at Wren Street. (Ordonez Decl., Ex. A.) By the second attempt the server had been told that the subject was unknown at the address and had recorded a Redlands address, and six more attempts followed at Wren Street. (*Ibid.*) Plaintiff had alleged that Ordonez resides in Redlands, and attempted service

at no address but the one he had left. (Compl., ¶ 3; Ordonez Decl., Ex. A.) A July 14, 2025 entry records that “Residents at address appear to be avoiding service,” but the record does not connect those persons to Defendants. (Ordonez Decl., Ex. A.) The attempts recorded do not show that the summons and complaint could not with reasonable diligence be personally delivered to Ordonez. Substituted service under subdivision (b) was therefore unavailable.

Subdivision (b) requires a person as well as a place. Ordonez testifies that apart from the sale of the property he has no relationship with Marco Matas, did not know him before the sale, has never met him, and never authorized him to accept service. (Ordonez Decl., ¶ 5.) No one at the address is authorized to accept service on his behalf. (Ordonez Decl., ¶ 4.) A man Ordonez has never met was not a competent member of his household. Plaintiff offers no declaration from Matas and no evidence that he lived with Ordonez, worked for him, or was in charge of anything of Ordonez's. The return identifies Matas as a co-occupant of the premises and says nothing of how he was connected to Ordonez. (Ordonez Decl., Ex. A.) The person requirement fails whatever the premises were.

Substituted service on Ordonez did not satisfy section 415.20, subdivision (b).

C. Go Impact

The Amended Proof of Service for the corporation names Ordonez as its registered agent and identifies Code of Civil Procedure section 416.10 as the authority for serving the entity. (Ordonez Decl., Ex. A.) It states that the papers were left with “MARCO MATAS, P.I.C./CO-OCCUPANT,” and marks the same household basis the return for Ordonez marks. (Ibid.) Subdivision (a) of section 415.20 governs substituted service on a person to be served under section 416.10. It names an office, usual office hours, and the person apparently in charge of that office.

Here, the Declaration of Diligence describes 23040 Wren Street as “A RESIDENCE ADDRESS,” and Plaintiff’s evidence shows no business conducted there. (Ordonez Decl., Ex. A.) The corporation’s designated agent had moved from the residence more than a year earlier. (Ordonez Decl., ¶ 5.) Subdivision (a) reaches an office, and the premises were a residence. It permits a plaintiff to leave the papers at the usual mailing address of the person to be served only “if no physical address is known,” and Plaintiff knew a physical address, which

is the one it served.

The return designates Matas as a person in charge. (Ordonez Decl., Ex. A.) A person in charge of a residence is not a person apparently in charge of a corporate office. Plaintiff produced no evidence that Matas was Go Impact's agent, an officer or employee of the corporation, or a person the corporation authorized to receive process, and nothing in the record connects him to any office of the corporation or of its agent.

Go Impact designated 23040 Wren Street as its principal office, as its mailing address, and as the address of its agent for service, and it never changed the designation. (Flate Decl., ¶ 2, Ex. A.) On that basis, Plaintiff argues that a plaintiff who relies on the public record should not bear the consequences of the corporation's failure to maintain it, and that the Code does not require a plaintiff to discover an undisclosed relocation contrary to the corporation's official records. (Opp., pp. 9:5-6, 9:13-26.) The Legislature addressed the stale designation directly. A plaintiff who shows that "the agent designated cannot with reasonable diligence be found at the address designated for personally delivering the process" may obtain a court order for service on the Secretary of State. (Corp. Code, § 1702, subd. (a).) The eight attempts the Declaration of Diligence records would have supported that showing.

The Court finds that 23040 Wren Street was not the office of Go Impact or of its agent on July 20, 2025, and that Marco Matas was not apparently in charge of any office of either. Service on the corporation did not satisfy section 415.20, subdivision (a).

D. Facial Validity

Plaintiff argues that the service was facially valid. (Opp., p. 10:1-6.) The argument rests on *Trackman v. Kenney* (2010) 187 Cal.App.4th 175, 185 (Trackman), which states that "[l]eaving papers with an apparent coresident at an address publicly registered by the defendant, as required by law, is a method of service reasonably calculated to achieve actual service, and is therefore facially valid, whether or not actual service is accomplished on the facts of a given case."

The defendant in *Trackman* had filed his motion more than two years after entry of judgment, and a judicially created two-year limitation then confined the court to the face of the record and made those

declarations irrelevant. (Id. at p. 181.) On that record the Court of Appeal held the proof of service not void on its face, and went no further. (Id. at p. 185.) The California Supreme Court has abrogated the limitation, holding that “a section 473(d) motion to vacate a judgment that is void for lack of proper service is not subject to the judicially imposed two-year limitation.” (California Capital Ins. Co. v. Hoehn (2024) 17 Cal.5th 207, 225 (Hoehn).)

The Court concludes that the default judgment entered on January 22, 2026, is void for want of personal jurisdiction over either Defendant.

II. Inexcusable Neglect

Plaintiff argues that Defendants may not obtain relief because they have not shown that their lack of actual notice was free of inexcusable neglect. (Opp., pp. 3:21 - 4:21.) Go Impact filed a Statement of Information giving 23040 Wren Street as its principal office, as its mailing address, and as the address of its agent for service, and it never updated the filing through the date of service. (Flate Decl., ¶ 2, Ex. A.) Defendants gave the same address in a deed of trust recorded in San Bernardino County. (Flate Decl., ¶ 3, Ex. B.) Plaintiff contends that Ordóñez also handed Plaintiff a check bearing that address in October 2024. (Opp., p. 6:20-27.) Plaintiff adds that the failure to keep the Statement of Information current violates Corporations Code section 1502 and raises a presumption of negligence. (Opp., pp. 7:12 - 8:14.) Defendants concede that the address should have been updated. (Reply, p. 2:9-11.)

Plaintiff's showing addresses the affidavit section 473.5, subdivision (b), requires. Relief under section 473, subdivision (d), imposes no comparable condition. A court that acquired no personal jurisdiction over a defendant had no power to enter judgment against that defendant. Where a defendant's neglect led the plaintiff to serve the wrong place, that neglect does not give the court the jurisdiction the service failed to confer.

III. Scope of Relief

The Court vacates the defaults entered against Go Impact Solutions, Inc. and Gildardo Ordóñez, and the default judgment entered against them on January 22, 2026. (Code Civ. Proc., § 473, subd. (d).)

Defendants ask the Court to recall, quash, or vacate the Abstracts of Judgment recorded against their real property in San Bernardino County and Riverside County, which they say are clouding title to four properties in escrow. (Mot., p. 11:16; Ordonez Decl., ¶ 9; Elam Decl., ¶ 13.) The Abstracts of Judgment issued on the judgment this order vacates. Those Abstracts and the judgment liens they created are of no further force or effect. A certified copy of this order may be recorded in each county.

CONCLUSION

Defendants' Motion to Set Aside Default and Default Judgment is granted. Defendants lodged a proposed Answer with the Motion and ask that it be deemed filed. (Elam Decl., ¶ 17, Ex. C.) Defendants shall instead serve and file the Answer within 10 days of this date.